

State Electricity Regulatory Commission (Terms and Conditions of Intra-State Open Access) Regulations, 2010

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State of Jammu-Kashmir - Act

State Electricity Regulatory Commission (Terms and Conditions of Intra-State Open Access) Regulations, 2010

JAMMU & KASHMIR

India

State Electricity Regulatory Commission (Terms and Conditions of Intra-State Open Access) Regulations, 2010

Rule

STATE-ELECTRICITY-REGULATORY-COMMISSION-TERMS-AND-CONDITIONS-OF-INTRA-STATE-OPEN-ACCESS-REGULATIONS-2010 of 2010

Published on 1 January 2010

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State Electricity Regulatory Commission (Terms and Conditions of Intra-State Open Access) Regulations, 2010

No. In exercise of the powers conferred by section 181, of the Electricity Act, 2003 (36 of 2003), and all other powers enabling it in this behalf, and after previous publication, the State Electricity Regulation commission hereby makes the following Regulation, namely-

Chapter 1

Preliminary

1.

Short Title , Extent and Commencement.

(1)

These regulations may be called the ... State Electricity Regulatory Commission (Terms and Conditions of Intra-State Open Access) Regulations, 2010.

(2)

These regulations shall come into force on the date of publication in the Government Gazette.

2.

Scope.

- These regulations shall apply to open access for use of intra-State transmission system and distribution systems in the State, including when such system is used in conjunction with inter-State transmission system.

3.

Definitions.

(1)

In these regulations, unless the context otherwise requires

(a)

"Act" means the Electricity Act, 2003 (36 of 2003);

(b)

"Allotted Capacity" means the power transfer in MW between the specified point(s) of injection and point(s) of drawal allowed to a long-term/medium-term customer on the intra-State transmission system and the expression "allotment of capacity" shall be construed accordingly;

(c)

"Applicant" means a consumer, trader, distribution licensee or a Generating company who has applied seeking connectivity or open access as the case may be

(d)

"Central Commission" means the Central Electricity Regulatory Commission referred to in Section 76 of the Act;

(e)

"Commission" means the Electricity Regulatory Commission referred to in Section 82 of the Act;

(f)

"Consumer" shall carry the same meaning as in the Act, but shall be restricted to such consumers within the State of to whom these regulations will apply.

(g)

"Contracted load" means the load in kW/HP/kVA (kilo Watt/Horse Power/kilo Volt Ampere) which the distribution licensee has agreed to supply from time to time subject to the governing terms and conditions and is different from the connected load;

(h)

"Day" means a day starting at 00.00 hours and ending at 24.00 hours;

(i)

"Distribution licensee" means any person licensed under Part IV of the Act for distribution and retail supply of electricity in the State of

(j)

"IEGC" means Indian Electricity Grid Code Specified by Central Electricity Regulatory Commission under clause (h) of sub-section (1) of section 79 of the Act, and as amended from time to time;

(k)

"Imbalance" in a time block for a generating station means its total actual generation minus its total scheduled generation and for a consumer or buyer means its total drawal minus its total scheduled drawal.

(l)

"Limited short-term open access customer" means consumer who has a supply agreement with the distribution licensee in whose area of supply the consumer is located and avails open access in distribution and/or transmission system only during pre-scheduled load shedding due to shortage of power.

(m)

"Long-term access" means the right to use the intra-State transmission system or distribution system for a period

exceeding 12 years but not exceeding 25 years.

(n)

"Medium-term open access" means the open access for a period exceeding three months but not exceeding three years

(o)

"Month" means a calendar month as per the Gregorian calendar;

(p)

"Nodal agency" means the nodal agency defined in Regulation 12 of these regulations;

(q)

"Open access" means the nondiscriminatory provision for the use of transmission lines or distribution system or associated facilities with such lines or system by any licensee or consumer or a generating company in accordance with these regulations and includes longterm access, medium-term open access and short-term open access.

(r)

"Open access customer" means a consumer, trader, distribution licensee or a generating company who has been granted open access under these regulations.

(s)

"Reserved Capacity" means the power transfer in MW between the specified point(s) of injection and point(s) of drawal allowed to a short-term customer on the transmission/distribution system depending on availability of transmission/distribution capacity and the expression "reservation of capacity" shall be construed accordingly;

(t)

"Short-term open access" means open access for a period up to one month at a time.

(u)

"SLDC" means the State Load Dispatch Centre established under subsection (1) of section 31 of the Act;

(v)

"State Grid Code" means the State Grid Code specified by the Commission under clause (h) of sub-section (1) of section 86 of the Act, applicable on the date of commencement of these regulations and as amended from time to time;

(w)

"State Transmission Utility (STU)" means the State Electricity Board or the Government Company notified by the State Government under sub-section (1) of section 39 of the Act;

(x)

"Transmission licensee" means any person licensed under Part IV of the Act for transmission of electricity.

(y)

"Transmission System Segment" means a part or whole of the transmission system from the point of injection to the point of drawal.

(z)

"Wheeling" means the operation whereby the distribution system and associated facilities of a transmission Licensee or distribution Licensee, as the case may be, are used by another person for the conveyance of electricity on payment of charges to be determined under section 62 of the Electricity Act 2003;

(2)

Words and expressions used and not defined in these regulations but defined in the Act or IEGC or the State Grid Code, Distribution code shall have the meaning assigned to them under the Act or the IEGC or the State Grid Code, Distribution Code as the case may be.

(3)

The General Clauses Act, 1897(10 of 1897), as amended from time to time shall apply for the interpretation of these regulations as it applies for interpretation of an Act of Parliament.

Chapter 2

Connectivity

4.

Connectivity.

(1)

Only a consumer having load of 10 MW and above or a Generating Station having capacity of 10 MW and above shall be eligible to obtain connectivity to the intra-State transmission system, unless already connected, and shall apply for

connectivity, in accordance with the provisions in this chapter.

(2)

A Generating Station having installed capacity less than 10 MW shall be eligible to obtain connectivity to the Distribution system and shall apply for connectivity as per the provisions of these regulations, unless already connected, in accordance with the provisions in this chapter.

5.

Application procedure for Connectivity to intra-State transmission system.

(1)

Applicant shall apply to the STU for connectivity in the Form prescribed in the detailed procedure to be laid down by the STU.

(2)

The Application shall be accompanied by a non-refundable fee of Rs. two lakh through demand draft in favour of payable at

(3)

The application for connectivity shall contain details such as, proposed geographical location of the applicant, quantum of power to be interchanged that is the quantum of power to be injected in the case of a generating station including a captive generating plant and quantum of power to be drawn in the case of consumer, with the intra-State transmission system and such other details as may be laid down by the State Transmission Utility in the detailed procedure:

Provided that in cases where once an application has been filed and thereafter there has been any material change in the location of the applicant or change, by more than 10 percent in the quantum of power to be interchanged with the intra-State transmission system, the applicant shall make a fresh application, which shall be considered in accordance with these regulations.

6.

Processing of Application and Grant of connectivity to STU.

(1)

On receipt of the application, the STU shall, in consultation and through coordination with other agencies involved in the intra-State transmission, process the application and carry out the necessary interconnection study as specified in the Central Electricity Authority (Technical Standards for Connectivity to the Grid) Regulations, 2007.

(2)

While granting connectivity, the STU shall specify the name of the substation or pooling station or switchyard where connectivity is to be granted. In case connectivity is to be granted by looping-in and looping-out of an existing or proposed line, the STU shall specify the point of connection and name of the line at which connectivity is to be granted. The STU shall indicate the broad design features of the dedicated transmission line and the timeframe for completion of the dedicated transmission line.

(3)

The applicant and all intra-State transmission licensees including the State Transmission Utility shall comply with the provisions of Central Electricity Authority (Technical Standards for Connectivity to the Grid) Regulations, 2007.

(4)

The applicant shall sign a connection agreement with the State Transmission Utility or intra-State transmission licensee owning the sub-station or pooling station or switchyard or the transmission line as identified by the STU where connectivity is being granted: Provided that in case connectivity of a generating station, including captive generating plant or consumer is granted to the intra-State transmission system of an intra-State transmission licensee other than the State Transmission Utility, a tripartite agreement as provided in the Central Electricity Authority (Technical Standards for Connectivity to the Grid) Regulations, 2007 shall be signed between the applicant, the State Transmission Utility and such intra-State transmission licensee.

(5)

The grant of connectivity shall not entitle an applicant to interchange any power with the grid unless it obtains long-term access, medium term open access or short-term open access in accordance with the provisions of these regulations.

(6)

A generating station, including captive generating plant which has been granted connectivity to the grid shall be allowed to undertake testing including full load testing by injecting its infirm power into the grid before being put into commercial

operation, even before availing any type of open access, after obtaining permission of the State Load Despatch Centre, which shall keep grid security in view while granting such permission. Commercial treatment of such infirm power from a generating station or a unit thereof, other than those based on nonconventional energy sources, the tariff of which is determined by the Commission, will be governed by the State Electricity Regulatory Commission (Terms and Conditions of Tariff) Regulations, xxxx. The power injected into the grid from other generating stations as a result of such testing shall be charged at the charges for imbalance determined by the Commission (UI charges where charges of imbalance have not notified by the Commission).

(7)

An applicant may be required by the State Transmission Utility to construct a dedicated line to the point of connection to enable connectivity to the grid, unless exempted by the Commission for reasons to be recorded in writing.

(8)

The STU shall convey its decision on grant of connectivity or otherwise within a period of 60 days from the date of receipt of application.

7.
Application procedure for Connectivity to distribution system by a generating station.

(1)

All eligible generating stations including a captive generating plant, seeking connectivity to the distribution system, shall apply to the distribution licensee for connectivity in the Form prescribed in the procedure to be laid down by the Distribution Licensee.

(2)

The Application shall be accompanied by a non-refundable fee of Rs. two lakh through demand draft in favour of payable at

(3)

The application for connectivity shall contain details such as, proposed geographical location of the generating station, quantum of power to be injected and such other details as may be laid down by the distribution licensee concerned in the procedure.

8.

Processing of Application and Grant of connectivity to distribution system by a generating station.

(1)

On receipt of the application, the distribution licensee shall, in consultation and through coordination with State Transmission Utility, process the application and carry out the necessary inter-connection study as specified in the Central Electricity Authority (Technical Standards for Connectivity to the Grid) Regulations, 2007.

(2)

While granting connectivity, the distribution licensee shall specify the name of the sub-station or pooling station or switchyard where connectivity is to be granted.

(3)

The distribution licensee shall indicate the broad design features such as switchyard and interconnection facility upto the point of injection into the Substation of the distribution licensee and the timeframe for completion of the same. The cost of creation of these facilities shall be borne by the Generating Company. In cases where augmentation of the distribution licensee's sub-station is involved, the generating station shall also bear the cost of bay, breaker in the distribution licensee's substation and equipment for inter-connection of real time data to SLDC.

(4)

The applicant and the distribution licensee shall comply with the provisions of Central Electricity Authority (Technical Standards for Connectivity to the Grid) Regulations, 2007.

(5)

The applicant shall sign a connection agreement with the distribution licensee where connectivity is being granted.

(6)

The grant of connectivity shall not entitle an applicant to interchange any power with the grid unless it obtains long-term access, mediumterm open access or short-term open access in accordance with the provisions of these regulations.

(7)

A generating station, including captive generating plant which has been granted connectivity to the distribution system

shall be allowed to undertake testing including full load testing by injecting its infirm power into the grid before being put into commercial operation, even before availing any type of open access, after obtaining permission of the State Load Despatch Centre and the distribution licensee, who shall keep grid security in view while granting such permission. Commercial treatment of such infirm power from a generating station or a unit thereof, other than those based on non-conventional energy sources, the tariff of which is determined by the Commission, will be governed by the State Electricity Regulatory Commission (Terms and Conditions of Tariff) Regulations, xxxx. The power injected into the grid from other generating stations as a result of such testing shall be charged at the charges for imbalance determined by the Commission (UI charges where charges of imbalance have not notified by the Commission).

Chapter 3

General Provisions for Open Access

9.

Eligibility for Open Access and conditions to be satisfied.

(1)

Subject to the provisions of these regulations, the licensees, generating companies, captive generating plants and consumers shall be eligible for open access to the intra-State transmission system of the State Transmission Utility or any transmission licensee on payment of transmission and other charges as may be determined by the Commission in accordance with Chapter 5 of the these regulations.

(2)

Subject to the provisions of these regulations, the licensees, generating stations, captive generating plants and consumers shall be eligible for open access to distribution system of a distribution licensee on payment of the wheeling and other charges as may be determined by the Commission in accordance with Chapter 5 of the these regulations.

(3)

Subject to the provisions of these regulations, open access shall be permissible to the consumers seeking open access capacity upto which SERC has introduced open access and are connected through an independent feeder emanating from a substation of licensee or industrial feeder provided that all the consumers on such industrial feeder opt for open access and having simultaneous schedule of drawal under such open access:

Provided that the consumers who are not on independent feeders, shall be allowed open access subject to the condition that they agree to rostering restrictions imposed by utility on the feeders serving them:

Provided further that duties of the distribution licensee with respect to such open access consumers shall be of a common carrier providing non-discriminatory open access as per section 42(3) of the Act.

(4)

A person having been declared insolvent or bankrupt or having outstanding dues against him for more than two months billing of distribution/transmission licensee at the time of application shall not be eligible for open access.

10.

Criteria for granting long-term access or medium-term open access or short term open access.

(1)

Before awarding long-term access, the State Transmission Utility shall have due regard to the augmentation required for the intra-State transmission system.

(2)

Medium-term open access or short-term open access shall be granted if the resultant power flow can be accommodated in the existing transmission system or the transmission system under execution:

Provided that no augmentation shall be carried out to the transmission system for the sole purpose of granting medium-term open access or short-term open access:

Provided further that construction of a dedicated transmission line shall not be construed as augmentation of the transmission system for the purpose of this regulation.

Chapter 4

Application Procedure and Approval

Application Procedure and Approval for Open Access to Consumer

11.

Categories of Open Access Consumers.

- The application procedure, application fee and the time frame of processing request by eligible consumers seeking

Open Access shall be based on the following criteria

(1)

System to which connected

(a)

Intra-State transmission system

(b)

Distribution system

(2)

Inter-se location of drawal and injection points

(a)

Both within the same distribution system

(b)

within the State but in different distribution systems

(c)

In different States

(3)

Duration of Open Access

(a)

Long term access

(b)

Medium-term open access

(c)

Short-term open access

12.

Application procedure for Open Access.

(1)

All applications for open access shall be made in the prescribed Form and submitted to the Nodal agency in accordance with these regulations.

(2)

All applicants seeking open access shall submit an undertaking of not having entered into Power purchase agreement (PPA) or any other bilateral agreement for the capacity (quantum of power) for which open access is sought.

(3)

Subject to the provisions of these regulations, the Nodal agency, Application fee, Documents to accompany the application and time frame for disposal of application shall be as specified in the following Tables :

Table 1

Consumer connected to Distribution System

S. No.

Period

Inter-se location of drawal and injection point

Nodal agency

Application fee (Rs.)

Documents to accompany the application

Time frame for disposal of application (days from the receipt of application)

Applicable Charges

Applicable Losses

For capacity of 10 MW and above

For capacity less than 10 MW

1.

Short-Term Open Access

Both within the same Distribution licensee
Concerned Distribution Licensee

2000

2000

? Proof of payment of Application fee.

? 7 working days in

case STOA applied for first time.

? 3 working days on subsequent STOA applications.

? Wheeling Charge

? Cross Subsidy

surcharge, Additional surcharge, if any

? Stand by charges, if

any

? Imbalance and

Reactive Energy Charges, as applicable.

? Distribution loss in kind at relevant voltage
level.

2.

Both within the same State but in areas of
different Distribution Licensees

SLDC

5000

5000

? Proof of payment of

Application fee,

? Consent from concerned Distribution licensees.

? 7 working days in

case STOA applied for first time.

? 3 working days on subsequent STOA applications.

? Wheeling Charge

? Cross Subsidy

surcharge, Additional surcharge, if any

? Stand-by charges, if

any

? Imbalance and

Reactive Energy Charges, as applicable.

? Scheduling and system

Operating Charges as applicable.

? Scheduling charge(Intra-State)

? Distribution loss in

kind at relevant voltage level in respect of both Distribution
Licensees

? Scheduling loss in kind. (Intra-State)

3.

Injection point in the intra-State transmission
system within the State

SLDC

5000

5000

? Proof of payment of

Application fee,

? Consent from concerned Distribution licensees.
? 7 working days in
case STOA applied for first time.
? 3 working days on subsequent STOA applications.
? Wheeling Charge
? Cross Subsidy
surcharge, Additional surcharge, if any
? Stand-by charges, if
any
? Imbalance and
Reactive Energy Charges, as applicable.
? Scheduling and system
Operating Charges, as applicable.
? Scheduling charge (Intra-State)
? Distribution loss in
kind at relevant voltage level.
? Scheduling Loss in kind. (Intra-State)
4.

In different States
RLDC of the region where consumer is located
5000
5000
? Proof of payment of
Application fee,
? Consent from concerned SLDCs and Distribution
licensees as applicable,
? As per Central Commission's Regulation
? Wheeling Charges
? Cross Subsidy
surcharge, Additional surcharge, if any
? Stand-by charges, if
any
? Imbalance and
Reactive Energy Charges, as applicable.
? Scheduling and system
Operating Charges, as applicable
? Scheduling Charge (Intra-State and Inter
State).
? Distribution loss in
kind at relevant voltage level.
? Scheduling Loss in kind. (Intra-State and
Inter State).

5.
Medium-Term Open Access
Both within the same Distribution licensee
Concerned Distribution Licensee
50000
25000
? Proof of payment of
Application fee,
? PPA or Sale-purchase

agreement of power,

? In case of generating station not already connected to grid, documentary evidence for completion of the connectivity showing that the same shall be completed before intending date of MTOA.

20

? Wheeling Charge

? Cross Subsidy

surcharge, Additional surcharge, if any

? Stand-by charges, if

any

? Imbalance and Reactive Energy Charges, as

applicable.

? Distribution loss in kind at relevant voltage

level.

6.

Both within the same State but different

Distribution Licensees

STU

100000

50000

? Proof of payment of

Application fee,

? PPA or Sale-purchase

agreement of power,

? In case of generating

station not already connected to grid, documentary evidence for completion of the connectivity showing that the same shall be completed before intending date of MTOA,

? Consent from concerned distribution licensees

40

? Wheeling Charge

? Cross Subsidy

surcharge, Additional surcharge, if any

? Stand-by charges, if

any

? Imbalance and

Reactive Energy Charges, as applicable.

? Scheduling and system

Operating Charges as applicable.

? Scheduling charge(Intra-State)

? Distribution loss in

kind at relevant voltage level in respect of both Distribution Licensees

? Scheduling loss in kind. (Intra-State)

7.

Injection point in the intra-State transmission system within the State

STU

100000

50000

? Proof of payment of
Application fee,
? PPA or Sale-purchase
agreement of power,
? In case of generating
station not already connected to grid, documentary evidence for
completion of the connectivity showing that the same shall be
completed before intending date of MTOA,
? Consent from concerned ? Distribution licensees

40

? Wheeling Charge
? Cross Subsidy
surcharge, Additional surcharge, if any Stand-by charges, if any
? Imbalance and
Reactive Energy Charges, as applicable.
? Scheduling and system
Operating Charges, as applicable.
? Scheduling charge (Intra-State)
? Distribution loss in
kind at relevant voltage level.
? Scheduling Loss in kind. (Intra-State)

8.

In different States

CTU

100000

100000

? Proof of payment of
Application fee,
? PPA or Sale-purchase
agreement of power,
? In case of generating
station not already connected to grid, documentary evidence for
completion of the connectivity showing that the same shall be
completed before intending date of MTOA,
? Consent from concerned SLDCs and Distribution
licensees, as applicable.

? As per Central Commission's Regulation

? Wheeling Charges

? Cross Subsidy

surcharge, Additional surcharge, if any

? Stand-by charges, if

any

? Imbalance and

Reactive Energy Charges, as applicable.

? Scheduling and system

Operating Charges, as applicable

? Scheduling Charge (Intra-State and Inter
State).

? Distribution loss in

kind at relevant voltage level.

? Scheduling Loss in kind. (Intra-State and

Inter State).

9.

Long Term Access

Both within the same Distribution licensee

Concerned Distribution Licensee

50000

25000

? Proof of payment of

Application fee,

? PPA or Sale-purchase

agreement of power,

? In case of generating station not already

connected to grid, documentary evidence for completion of the connectivity showing that the same shall be completed before

intending date of LTA

20

? Wheeling Charge

? Cross Subsidy

surcharge, Additional surcharge, if any

? Stand-by charges, if

any

? Imbalance and Reactive Energy Charges, as

applicable.

? Distribution loss in kind at relevant voltage

level.

10.

Both within the same State but different

Distribution Licensees

STU

100000

50000

? Proof of payment of

Application fee,

? PPA or Sale-purchase

agreement of power,

? In case of generating

station not already connected to grid, documentary evidence for completion of the connectivity showing that the same shall be completed before intending date of LTA,

? Consent from concerned distribution licensees

120 days where

augmentation of transmission system is not required

150 days, where augmentation of transmission

system is required.

? Wheeling Charge

? Cross Subsidy

surcharge, Additional surcharge, if any

? Stand-by charges, if

any

? Imbalance and

Reactive Energy Charges, as applicable.

? Scheduling and system

Operating Charges as applicable.

? Scheduling charge(Intra-State)

? Distribution loss in

kind at relevant voltage level in respect of both Distribution

Licensees

? Scheduling loss in kind. (Intra-State)

11.

Injection point in the intra- State transmission

system within the State

STU

100000

50000

? Proof of payment of Application fee, PPA or

Sale-purchase agreement of power,

? In case of generating station

not already connected to grid, documentary evidence for

completion of the connectivity showing that the same shall be

completed before intending date of LTA,

? Consent from concerned

120 days where

augmentation of transmission system is not required.

150 days, where augmentation of transmission

system is required.

? Wheeling Charge

? Cross Subsidy

surcharge, Additional surcharge, if any Stand-by charges, if any

? Imbalance and Reactive Energy Charges, as

applicable. Scheduling and system Operating Charges, as

Distribution loss in kind at relevant voltage level. Transmission

Loss in kind. (Intra-State)

? Distribution licensee

applicable.

? Scheduling charge (Intra-State)

12.

In different States

CTU

100000

100000

? Proof of payment of

Application fee, ? PPA or Sale-purchase agreement of power,

? In case of generating

station not already connected to grid, documentary evidence for

completion of the connectivity showing that the same shall be

completed before intending date of LTA,

? Consent from concerned SLDCs and Distribution

licensees as applicable

? As per Central Commission's Regulation

? Wheeling Charges

? Cross Subsidy

surcharge, Additional surcharge, if any

? Stand-by charges, if
any

? Imbalance and

Reactive Energy Charges, as applicable.

? Scheduling and system

Operating Charges, as applicable

? Scheduling Charge (Intra-State and Inter
State).

? Distribution loss in

kind at relevant voltage level.

? Scheduling Loss in kind. (Intra-State and
Inter State).

Table 2 Consumer connected to Distribution System

S. No.

Period

Inter-se location of drawal and injection
point

Nodal agency

Application fee (Rs.)

Documents to accompany the application

Time frame for disposal of application (days
from the receipt of application)

Applicable Charges

Applicable Losses

For capacity of 10 MW and above

For capacity less than 10 MW

1.

Short-Term Open Access

Both within the same State (in the intra-State
transmission system)

SLDC

5000

5000

? Proof of payment of Application fee.

? 7 working days in
case STOA applied for first time.

? 3 working days on subsequent STOA applications.

? Imbalance and

Reactive Energy Charges, as applicable.

? Scheduling and

system Operating Charges, as applicable

? Scheduling Charge

(Intra-State),

? Wheeling Charge, if applicable (ie. If fixed
charge being paid by consumer could be attributed to wheeling/
distribution network related cost)

? Scheduling Loss in kind. (Intra-State).

2.

Injection point in the distribution system
within the State

SLDC

5000

5000

? Proof of payment of

Application fee,

? Consent from concerned Distribution licensee.

? 7 working days in

case STOA applied for first time.

? 3 working days on subsequent STOA applications.

? Wheeling Charges, as

applicable.

? Imbalance and

Reactive Energy Charges, as applicable. Scheduling and system

Operating Charges, as applicable

? Scheduling Charge (Intra-State).

? Distribution loss in

kind at relevant voltage level.

? Scheduling Loss in kind. (Intra-State).

3.

In different States

RLDC of the region where consumer is located

5000

5000

? Proof of payment of

Application fee,

? Consent from concerned SLDCs and Distribution

licensee as applicable.

? As per Central Commission's Regulation

? Imbalance and

Reactive Energy Charges, as applicable.

? Scheduling and

system Operating Charges, as applicable.

? Scheduling Charge

(Intra-State and inter-State).

? Wheeling Charge, if applicable (ie. If fixed

charge being paid by consumer could be attributed to wheeling/
distribution network related cost)

? Distribution loss in

kind at relevant voltage level, if applicable.

? Scheduling Loss in kind. (Intra-State and

Inter State).

4.

Medium-Term Open Access

Both within the same State (in the intra- State
transmission system)

STU

100000

50000

? Proof of payment of

Application fee,

? PPA or Sale-purchase

agreement of power,

? In case of generating station or consumer not already connected to grid, documentary evidence for completion of the connectivity showing that the same shall be completed before intending date of MTOA.

20

? Imbalance and

Reactive Energy Charges, as applicable.

? Scheduling and

system Operating Charges, as applicable

? Scheduling Charge

(Intra-State).

? Wheeling Charge, if applicable (ie. If fixed

charge being paid by consumer could be attributed to wheeling/
distribution network related cost)

? Scheduling Loss in kind. (Intra-State).

5.

Injection point in the distribution system
within the State

STU

100000

50000

? Proof of payment of

Application fee,

? PPA or Sale-purchase

agreement of power,

? In case of generating

station or consumer not already connected to grid, documentary
evidence for completion of the connectivity showing that the same
shall be completed before intending date of MTOA,

? Consent from concerned Distribution licensee.

20

? Wheeling Charges, as

applicable,

? Imbalance and

Reactive Energy Charges, as applicable.

? Scheduling and

system Operating Charges, as applicable

? Scheduling Charge (Intra-State).

? Distribution loss in

kind at relevant voltage level.

? Scheduling Loss in kind. (Intra-State).

6.

In different States

CTU

100000

100000

? Proof of payment of

Application fee,

? PPA or Sale-purchase

agreement of power,

? In case of generating station or consumer not

already connected to grid, documentary evidence for completion of the connectivity showing that the same shall be completed before intending date of MTOA,

? Consent from concerned SLDCs and Distribution licensee, as applicable.

? As per Central Commission's Regulation

? Imbalance and

Reactive Energy Charges, as applicable.

? Scheduling and

system Operating Charges, as applicable.

? Scheduling Charge

(Intra-State and inter-State).

? Wheeling Charge, if applicable (ie. If fixed

charge being paid by consumer could be attributed to wheeling/ distribution network related cost)

? Distribution loss in

kind at relevant voltage level.

? Scheduling Loss in kind. (Intra-State).

7.

Long -Term Access

Both within the same State (in the intra- State transmission system)

STU

200000

100000

? Proof of payment of

Application fee,

Bank Guarantee,

? PPA or Sale-purchase

agreement of power,

? In case of generating station or consumer not

already connected to grid, documentary evidence for completion of the connectivity showing that the same shall be completed before intending date of LTA.

120 days where

augmentation of transmission system is not required.

150 days, where augmentation of transmission

system is required.

? Imbalance and

Reactive Energy Charges, as applicable.

? Scheduling and

system Operating Charges, as applicable

? Scheduling Charge

(Intra-State).

? Wheeling Charge, if applicable (ie. If fixed

charge being paid by consumer could be attributed to wheeling/ distribution network related cost)

? Scheduling Loss in kind. (Intra-State).

8.

Injection point in the distribution system

within the State

STU

200000

100000

? Proof of payment of

Application fee,

Bank Guarantee,

? PPA or Sale-purchase

agreement of power,

? In case of generating station or consumer not

already connected to grid, documentary evidence for completion of

the connectivity showing that the same shall be completed before

intending date of LTA,

? Consent from concerned Distribution

licensee.

120 days where

augmentation of transmission system is not required.

150 days, where augmentation of transmission

system is required.

? Wheeling Charges, as

applicable,

? Imbalance and

Reactive Energy Charges, as applicable. Scheduling and system

Operating Charges, as applicable

? Scheduling Charge (Intra-State).

? Distribution loss in

kind at relevant voltage level.

? Scheduling Loss in kind. (Intra-State).

9.

In different States

CTU

200000

200000

? Proof of payment of

Application fee,

Bank Guarantee,

? PPA or Sale-purchase

agreement of power,

? In case of generating

station or consumer not already connected to grid, documentary

evidence for completion of the connectivity showing that the same

shall be completed before intending date of LTA,

? Consent from concerned STU and Distribution

licensee, as applicable.

? As per Central Commission's Regulation

? Imbalance and

Reactive Energy Charges, as applicable.

? Scheduling and system

Operating Charges, as applicable.

? Scheduling Charge

(Intra-State and inter-State).

? Wheeling Charge, if applicable (ie. If fixed

charge being paid by consumer could be attributed to wheeling/
distribution network related cost)

? Distribution loss in

kind at relevant voltage level, if applicable.

? Scheduling Loss in kind. (Intra-State and

Inter State). Distribution loss in kind at relevant voltage

level, if applicable. Transmission Loss in kind. (Intra-State and
Inter State).

13.

Procedure for Long Term Access.

(1)

Involving inter-State transmission system: Notwithstanding anything contained in clauses (2) and (3) herein below, procedure for inter-State long-term Access shall be as per Central Electricity Regulatory Commission (Grant of Connectivity, Long-term Access and Medium-term Open Access in inter-State Transmission and related matters) Regulations, 2009 or its statutory re-enactments as amended from time to time:

Provided that in respect of a consumer connected to a distribution system seeking inter-State long-term access, the SLDC, before giving its consent to the RLDC as required under the Central Commission's Regulations, shall require the consumer to submit the consent of the distribution licensee concerned.

(2)

Involving only intra-State transmission system: Subject to the provisions of clause (1) herein above, intra-State long-term Access involving intra-State transmission system shall be in accordance with the provisions of sub-clause (a) to (l) herein below.

(a)

The application for grant of long-term access shall contain details such as name of the entity or entities from whom electricity is proposed to be procured along with the quantum of power and such other details as may be laid down by the State Transmission Utility in the detailed procedure:

Provided that in case augmentation of transmission system is required, the applicant shall also have to bear the transmission charges for the same as per these regulations:

Provided further that in cases where there is any material change in location of the applicant or change by more than 10 percent in the quantum of power to be interchanged using the intra-State transmission system, a fresh application shall be made, which shall be considered in accordance with these regulations.

(b)

The applicant shall submit any other information sought by the nodal agency including the basis for assessment of power to be interchanged using the intra-State transmission system and power to be transmitted to or from various entities or regions to enable the nodal agency to plan the intra-State transmission system in a holistic manner.

(c)

The application shall be accompanied by a bank guarantee of Rs 10,000/- (ten thousand) per MW of the total power to be transmitted. The bank guarantee shall be in favour of the nodal agency, in the manner laid down under the detailed procedure.

(d)

The bank guarantee of Rs. 10,000 /- (ten thousand) per MW shall be kept valid and subsisting till the execution of the long-term access agreement, in the case when augmentation of transmission system is required, and till operationalization of long-term access when augmentation of transmission system is not required.

(e)

The bank guarantee may be encashed by the nodal agency, if the application is withdrawn by the applicant or the long-term access rights are relinquished prior to the operationalisation of such rights when augmentation of transmission system is not required.

(f)

The aforesaid bank guarantee will stand discharged with the submission of bank guarantee required to be given by the applicant to the State Transmission Utility during construction phase when augmentation of transmission system is required, in accordance with the provisions in the detailed procedure.

(g)

On receipt of the application, the nodal agency shall, in consultation and through coordination with other agencies involved in intra-State transmission system to be used, process the application and carry out the necessary system studies as expeditiously as possible so as to ensure that the decision to grant long-term access is arrived at within the time frame specified in clause 2 of Regulation 12 herein above:

Provided that in case the nodal agency faces any difficulty in the process of consultation or coordination, it may approach the Commission for appropriate directions.

(h)

Based on the system studies, the nodal agency shall specify the intra- State transmission system that would be required to give long-term access. In case augmentation to the existing intra-State transmission system is required, the same will be intimated to the applicant.

(i)

While granting long-term access, the nodal agency shall communicate to the applicant, the date from which long-term access shall be granted and an estimate of the transmission charges likely to be payable based on the prevailing costs, prices and methodology of sharing of transmission charges specified by the Commission.

(j)

The applicant shall sign an agreement for long-term access with the State Transmission Utility in case long-term access is granted by the State Transmission Utility, in accordance with the provision as may be made in the detailed procedure. While seeking long-term access to an intra-State transmission licensee, other than the State Transmission Utility, the applicant shall sign a tripartite long-term access agreement with the State Transmission Utility and the intra-State transmission licensee. The long-term access agreement shall contain the date of commencement of long-term access, the point of injection of power into the grid and point of drawal from the grid and the details of dedicated transmission lines, if any, required. In case augmentation of transmission system is required, the long-term access agreement shall contain the time line for construction of the facilities of the applicant and the transmission licensee, the bank guarantee required to be given by the applicant and other details in accordance with the detailed procedure.

(k)

Immediately after grant of long-term access, the nodal agency shall inform the State Load Despatch Centre so that it can consider the same while processing requests for grant of short-term open access, received under these regulations.

(l)

On the expiry of the period of long-term access, the same shall stand extended on a written request by the consumer, to the Sate Transmission Utility, submitted at least six months prior to such expiry, mentioning the period for which extension is required:

Provided that in case no written request is received from the consumer within the timeline specified above, the said long-term access shall stand terminated on the date up to which it was initially granted.

(3)

Within same distribution system: The procedure specified in clause (2) above shall, mutatis mutandis, apply to cases of long-term access when the point of injection and the point of drawal are located in the same distribution system.

14.

Procedure for medium-term open access.

(1)

Involving inter-State transmission system: Notwithstanding anything contained in clauses (2) and (3) herein below, procedure for inter-State medium-term open access shall be as per Central Electricity Regulatory Commission (Grant of Connectivity, Long-term Access and Medium-term Open Access in inter-State Transmission and related matters) Regulations, 2009 or its statutory re-enactment as amended from time to time :

Provided that in respect of a consumer connected to a distribution system seeking inter-State medium-term open access, the SLDC, before giving its consent to the RLDC as required under the Central Commission's regulations, shall require the consumer to submit the consent of the distribution licensee concerned.

(2)

Involving only intra-State transmission system: Subject to the provisions of clause (1) herein above, intra-State medium-term open access involving intra-State transmission system shall be in accordance with the provisions of clause (a) to (f) herein below.

(a)

The application for grant of medium-term open access shall contain such details as may be laid down under the detailed procedure and shall, in particular, include the point of injection into the grid, point of drawal from the grid and the quantum of power for which medium term open access has been applied for.

(b)

The start date of the medium-term open access shall not be earlier than 5 months and not later than 1 year from the last day of the month in which application has been made.

(c)

On receipt of the application, the nodal agency shall, in consultation and through coordination with other agencies involved in intra-State transmission, process the application and carry out the necessary system studies as expeditiously as possible so as to ensure that the decision to grant or refuse medium-term open access is made within the time frame specified in clause (2) of Regulation 12 herein above:

Provided that in case the nodal agency faces any difficulty in the process of consultation or coordination, it may approach the Commission for appropriate directions.

(d)

On being satisfied that the requirements specified under clause (2) of Regulation 9 are met, the nodal agency shall grant medium-term open access for the period stated in the application:

Provided that for reasons to be recorded in writing, the nodal agency may grant medium-term open access for a period less than that sought for by the applicant:

Provided further that the applicant shall sign an agreement for mediumterm open access with the State Transmission Utility, in accordance with the provision as may be made in the detailed procedure. While seeking medium-term open access to an intra-State transmission licensee, other than the State Transmission Utility, the applicant shall sign a tripartite medium-term open access agreement with the State Transmission Utility and the intra-State transmission licensee. The medium-term open access agreement shall contain the date of commencement and end of medium-term open access, the point of injection of power into the grid and point of drawal from the grid, the details of dedicated transmission lines required, if any, the bank guarantee required to be given by the applicant and other details in accordance with the detailed procedure.

(e)

Immediately after grant of medium-term open access, the nodal agency shall inform the State Load Despatch Centre so that it can consider the same while processing requests for short- term open access received under these regulations.

(f)

On expiry of the period of the medium-term open access, the mediumterm consumer shall not be entitled to any overriding preference for renewal of the term.

(3)

Within same distribution system: The procedure specified in clause (2) above shall, mutatis mutandis, apply to cases of medium-term open access when the point of injection and the point of drawal are located in the same distribution system.

15.

Procedure for short-term Open Access.

- (1) Involving inter-State transmission system: Notwithstanding anything contained in clauses (2) to (3) herein below, procedure for inter-State short-term Open Access shall be as per Central Electricity Regulatory Commission (Open Access in inter-State Transmission) Regulations, 2008, or its statutory re-enactments, as amended from time to time:

Provided that in respect of a consumer connected to a distribution system seeking inter-State short-term open access, the SLDC, before giving its consent to the RLDC as required under the Central Commission's regulations, shall require the consumer to submit the consent of the distribution licensee concerned.

(2)

Involving only intra-State transmission system: Subject to the provisions of clause (1) herein above, intra-State short-term Open Access shall be in accordance with the provisions of sub clause (a) to (f) herein below:

(a)

Open Access in advance

(i)

Application may be submitted to the Nodal Agency seeking short-term open access upto the fourth month, considering the month in which an application is made being the first month.

(ii)

Separate application shall be made for each month and for each transaction in a month.

(iii)

The application to the Nodal agency shall be on the prescribed form given in [Format ST-1] containing such details as capacity needed, generation planned or power purchase contracted, point of injection, point of drawal, duration of availing open access, peak load, average load and such other additional information as may be required by the Nodal agency. The application shall be accompanied by a non-refundable application fee in cash or by demand draft in favour of the officer so notified by Nodal agency.

(iv)

An application for grant of open access commencing in any month may be submitted in a cover marked "Application for Short-Term Open Access - in advance" up to 15th day of the preceding month. For example, application for grant of open access commencing in the month of July shall be received up to 15th day of June.

(v)

Nodal agency shall acknowledge receipt of the application by indicating time and date on "Acknowledgement" to the applicant.

(vi)

A consumer of distribution licensee intending to avail open access shall also furnish a copy of his application to the distribution licensee of his area of supply.

(vii)

Based on the type of transactions Nodal agency shall take a decision on the applications for short-term open access in the manner provided herein below.

(viii)

All applications received under sub-sub-clause (iv) above shall be taken up for consideration together and processed as per allotment priority criteria specified under Regulation 19 of these regulations.

(ix)

Nodal agency shall check transaction for congestion of any element (line and transformer) of transmission and distribution system involved in transaction.

(x)

Nodal agency shall convey grant of open access or otherwise in format [Format-ST2] along with schedule of payments to the consumer latest by 19th day of such preceding month.

(xi)

Nodal agency shall assign specific reasons if open access is denied under sub-sub clause (x).

(b)

Day-Ahead Open Access

(i)

An application for grant of day ahead open access may be received by Nodal agency within three days prior to the date of scheduling but not later than 1300 Hours of the day immediately preceding the day of scheduling for day-ahead transaction. For example, application for day-ahead transaction on 25th day of July shall be received on 22nd day or 23rd day or up to 1300 hours on 24th day of that month.

(ii)

Nodal agency shall check for congestion and convey grant of approval or otherwise in the same format [Format-ST2] as provided in sub-sub-clause (x) of clause (a) above. All other provisions of application for short-term open access shall apply.

(c)

Bidding Procedure

(i)

If the capacity sought by the consumers for Open Access in Advance for the following month is more than the available capacity or SLDC perceives congestion of any element of transmission and distribution system involved in the transaction, the allocation shall be made through electronic bidding procedure.

(ii)

The decision of SLDC in respect of an expected congestion shall be final and binding.

(iii)

SLDC shall convey information of congestion and decision for invitation of bidding indicating floor price on format [FORMATST3] to the applicants .

(iv)

SLDC shall also display bidding information on its website.

(v)

The floor price of transmission and wheeling charges determined on the basis of relevant order of the Commission shall be indicated in FORMAT-ST3.

(vi)

The Bids shall be accepted on format [Format-ST4] up to the "bid closing time" as indicated in bidding invitation FORMATST3. Modification / amendment to a bid, once submitted shall not be entertained.

(vii)

If any consumer does not participate in bidding process, his application shall be deemed to have been withdrawn and shall not be processed.

(viii)

SLDC shall not entertain any request for extension of time/date for submission of bids.

(ix)

The bidders shall quote price (rounded-off to whole number) in denomination in which floor price has been determined.

(x)

The quoted price shall be arranged in descending order and allocation of available capacities shall be accorded in such descending order until the available capacity is exhausted.

(xi)

In case of equal price quoted by two or more consumers, the allocation from the residual available capacity at any stage under sub-sub-clause (x) above shall be made in proportion to capacity being sought by such consumers.

(xii)

All consumers, in favour of whom full capacities have been allotted, shall pay the highest price obtained from bids.

(xiii)

The consumers, who are allotted less capacity, shall pay the price as quoted by them .

(xiv)

SLDC shall reject bid which are incomplete, vague in any manner or not found in conformity with bidding procedure.

(xv)

The successful bidder, in favour of whom the capacities have been allocated, shall pay transmission charges, wheeling charges, as the case may be, determined by bidding under subsub clause (xii) or (xiii) of this clause.

(d)

The reserved capacity by a short-term open access consumer is not transferable to others.

(e)

The capacity available as a result of surrender or reduction or cancellation of the reserved capacity by the State Load Dispatch Centre, may be reserved for any other short-term open access consumer in accordance with these regulations.

(f)

On expiry of the period of the short-term open access, the short-term consumer shall not be entitled to any overriding preference for renewal of the term.

(3)

Within same distribution system: The procedure specified in clause (2) above, mutatis mutandis, shall apply to cases of short-term open access when the point of injection and the point of drawal are located in the same distribution system.

16.

Consent by STU, SLDC or Distribution Licensee.

- (1) Inter-State open access : STU in the case of application for grant of long-term access and SLDC in the case of grant of medium-term open access and short-term open access shall convey its consent or otherwise as per the provisions of Central Electricity Regulatory Commission (Grant of Connectivity, Long-term Access and Medium-term

Open Access in inter-State Transmission and related matters) Regulations, 2009 and Central Electricity Regulatory Commission (Open Access in inter-State Transmission) Regulations, 2008, respectively or their statutory re-enactments, as amended from time to time. In case of applicant connected to the distribution licensee, the said distribution licensee shall convey its consent or otherwise within 3 days of receipt of the request of the applicant.

(2)

Intra-State Open Access :

(a)

In respect of a consumer connected to a distribution system seeking Open access, such consumer shall be required to submit the consent of the distribution licensee concerned. The distribution licensee shall convey its consent to the applicant by e-mail or fax or by any other usually recognised mode of communication, within three (3) working days of receipt of the application.

(b)

While processing the application from a generating station seeking consent for open access, the distribution licensee shall verify the following, namely-

(i)

Existence of infrastructure necessary for time-block-wise energy metering and accounting in accordance with the provisions of the State Grid Code in force, and

(ii)

Availability of capacity in the distribution network.

(c)

Where existence of necessary infrastructure and availability of capacity in the distribution network has been established, the distribution licensee shall convey its consent to the applicant by e-mail or fax or by any other usually recognised mode of communication, within three (3) working days of receipt of the application.

(d)

In case the distribution licensee finds that the application for consent is incomplete or defective in any respect, it shall communicate the deficiency or defect to the applicant by e-mail or fax or by any other usually recognised mode of communication, within two (2) working days of receipt of the application:

(e)

In case the application has been found to be in order but the distribution licensee refuses to give consent on the grounds of nonexistence of necessary infrastructure or unavailability of surplus capacity in the distribution network, such refusal shall be communicated to the applicant by e-mail or fax or by any other usually recognized mode of communication, within the period of three (3) working days from the date of receipt of the application, along with reasons for such refusal:

(f)

Where the distribution licensee has not communicated any deficiency or defect in the application within two (2) days from the date of receipt of application, or refusal or consent within the specified period of three (3) working days from the date of receipt of the application consent shall be deemed to have been granted.

17.

Consideration of applications from defaulters.

- Notwithstanding anything contained in these regulations, the Nodal Agency shall be at liberty to summarily reject an application for Open Access on the ground of non-compliance of the provisions of these regulations, more specifically the provisions relating to timely payment of the charges leviable hereunder.

Application Procedure and Approval for Open Access to eligible entities other than consumers and generating stations connected to distribution system

18.

Application by eligible entities other than consumers and generating stations connected to distribution system.

- The procedure for submission of the application and processing the same as laid down in this chapter in respect of the consumers shall, mutatis mutandis, be applicable to the electricity trading licensees, distribution licensees and the generating companies connected to the STU as well. The procedure for submission and processing of Open Access application by a generating company in respect of a generating station connected to distribution system has been specified in chapter 11 herein below

Common provisions for Open Access

19.

Allotment Priority.

(1)

The priority for allotment of open access in intra-State transmission system shall be decided on the following criteria:

(a)

A distribution Licensee shall have the highest priority in allotment of open access capacity irrespective of whether the open access request is for long-term, medium-term or short-term.

(b)

The long-term open access applicants shall have the priority next to the distribution licensee.

(c)

The medium-term open access applicants shall have the priority next to the long-term open access applicants.

(d)

The short-term open access applicants shall have the priority next to the medium-term open access applicants.

(e)

Allotment priority for short-term open access applicants shall be decided subject to capacity availability.

(f)

An existing open access customer shall have the priority higher than new open access applicants under respective category provided the former applies for its renewal thirty days prior to the expiry of existing term of open access.

(g)

When the requirement projected by an applicant is more than the available capacity and the said applicant is not able to limit his requirement to the available capacity, the request of applicant having next lower priority shall be taken up for consideration.

Chapter 5

Open Access Charges

20.

Transmission Charges.

- Open Access customer using transmission system shall pay the charges as stated hereunder:

(1)

For use of inter-State transmission system - As specified by the Central Commission from time to time.

(2)

For use of intra-State transmission system - Transmission charges payable to State Transmission Utility/ transmission licensee by an open access customer for usage of their system shall be determined as under:

Transmission Charges = $ATC / (PLS \times T \times 365)$ (in Rs./MW-day)

Where,

ATC= Annual Transmission Charges determined by the Commission for the State transmission system for the concerned year.

PLST= Peak load projected to be served by the State transmission system in concerned year.

Provided that transmission charges shall be payable on the basis of contracted Capacity/ Scheduled Load or actual power flow whichever is higher. For Open Access for a part of a day, the transmission charges shall be payable on pro-rata basis:

Provided further that where a dedicated transmission system used for open access has been constructed for exclusive use of an open access customer, the transmission charges for such dedicated system shall be worked out by transmission licensee for their respective systems and got approved by the Commission and shall be borne entirely by such open access customer till such time the surplus capacity is allotted and used for by other persons or purposes.

21.

Scheduling and system operation charges.

- Scheduling and system operation charges shall be payable by the Open Access customers at the following rates:

(1)

In respect of inter-State open access

(a)

Long-term access and Medium-term open access

(i)
Regional Load Despatch Centre fees and charges including charges for the Unified Load Despatch and Communication Scheme as specified by the Central Commission under section 28(4) of the Act.

(ii)
State Load Despatch Centre charges as specified by the Commission under sub-section (3) of section 32 of the Act.

(b)
Short-term open access

(i)
Regional Load Despatch Centre and State load dispatch centre charges as specified by the Central Commission.

(2)
In respect of intra-State open access

(a)
Long-term access and medium-term open access Long-term access and medium-term open access customers shall be liable to pay SLDC charges determined by the Commission under sub-section (3) of section 32 of the Act.

(b)
Short-term open access A composite operating charge @ Rs.2,000/- per day or part of the day shall be payable by a short-term open access customer for each transaction to the SLDC or as determined by the Commission from time to time.

The operating charge includes fee for scheduling and system operation, energy accounting, fee for affecting revisions in schedule on bonafide grounds and collection and disbursement of charges.

22.

Wheeling Charges.

- Wheeling charges payable to distribution licensee, by an open access customer for usage of its system shall be as determined as under:

Wheeling Charges = $(ARR - PPC - TC) / (PLSD \times 365)$ (in Rs./MW-Day)

Where,

ARR= Annual Revenue Requirement of the distribution licensee in the concerned year

PPC= Total Power Purchase Cost of distribution licensee in the concerned year

TC = Total transmission charges paid by distribution licensee for State and Inter-State transmission system for the concerned year

PLSD= Total Peak load projected to be served by the concerned distribution system in the concerned year

Provided that Wheeling charges shall be payable on the basis of contracted Capacity/ Scheduled Load or actual power flow whichever is higher. For Open Access for a part of a day, the wheeling charges shall be payable on prorata basis:

Provided further that where a dedicated distribution system used for open access has been constructed for exclusive use of an open access customer, the wheeling charges for such dedicated system shall be worked out by distribution licensee for their respective systems and got approved by the Commission and shall be borne entirely by such open access customer till such time the surplus capacity is allotted and used for by other persons or purposes;

Provided also that an open access customer connected to the STU system shall be liable to pay the wheeling charges determined under this regulation, if such customer was paying wheeling charges directly or indirectly before availing open access.

[Note: In case an Open Access customer continues to pay the fixed charge and such fixed charge can be attributed to wheeling/distribution network related cost, partly or fully, SERC may provide for adjustment of such fixed charges against the wheeling charges determined as above.]

23.

Cross subsidy surcharge.

(1)
If open access facility is availed of by a subsidising consumer of a distribution licensee of the State, then such consumer, in addition to transmission and/or wheeling charges, shall pay cross subsidy surcharge determined by the Commission. Cross subsidy surcharge determined on Per Unit basis shall be payable, on monthly basis, by the open access consumers based on the actual energy drawn during the month through open access. The amount of surcharge shall be paid to the distribution licensee of the area of supply from whom the consumer was availing supply before

seeking open access.

(2)

The Cross Subsidy Surcharge shall be determined in accordance with the following formula specified in National Tariff Policy at the commencement of these regulations.

Surcharge formula:

$$S = T - [C (1 + L / 100) + D]$$

Where

S is the surcharge

T is the Tariff payable by the relevant category of consumers;

C is the Weighted average cost of power purchase of top 5% at the margin excluding liquid fuel based generation and renewable power

D is the Wheeling charge in per kWh basis (to be derived from the wheeling charge in Rs./MW-Day referred to in Regulation 22)

L is the system Losses for the applicable voltage level, expressed as a percentage

Provided that in case the above formula gives negative value of surcharge, the same shall be zero:

Provided further that the Commission may fix a lower surcharge in the situation of shortages and load shedding by the distribution licensee:

Provided also that such cross subsidy surcharge shall not be levied in case distribution access is provided to a person who has established a captive generation plant for carrying the electricity to the destination of his own use.

(3)

Cross subsidy surcharge so determined by the Commission shall be reduced by 20% every year at a linear rate, taking the year in which the Commission has allowed open access to a category of consumers as the first year.

e.g. Cross subsidy surcharge of 1 Rs./ kWh determined in the first year will be 80 Paise/kWh in second year and 60 paise/ kWh in third year and so on:

Provided that in case power supply position or the consumer load seeking open access changes substantially, the Commission may review the Cross Subsidy Surcharge as and when required:

Provided further that the revised cross subsidy surcharge so determined by the Commission in subsequent years shall be applicable only to the new Open Access applicants.

24.

Additional Surcharge.

(1)

An open access consumer, receiving supply of electricity from a person other than the distribution licensee of his area of supply, shall pay to the distribution licensee an additional surcharge on the charges of wheeling, in addition to wheeling charges and cross-subsidy surcharge, to meet out the fixed cost of such distribution licensee arising out of his obligation to supply as provided under sub-section (4) of section 42 of the Act.

(2)

This additional surcharge shall become applicable only if the obligation of the licensee in terms of power purchase commitments has been and continues to be stranded or there is an unavoidable obligation and incidence to bear fixed costs consequent to such a contract. However, the fixed costs related to network assets would be recovered through wheeling charges.

(3)

The distribution licensee shall submit to the Commission on six monthly basis, a detailed calculation statement of fixed cost which the licensee is incurring towards his obligation to supply.

The Commission shall scrutinize the statement of calculation of fixed cost submitted by the distribution licensee and obtain objections, if any, and determine the amount of additional surcharge:

Provided that any additional surcharge so determined by the Commission shall be applicable only to the new open access customers.

(4)

Additional surcharge determined on Per Unit basis shall be payable, on monthly basis, by the open access consumers based on the actual energy drawn during the month through open access:

Provided that such additional surcharges shall not be levied in case distribution access is provided to a person who has

established a captive generation plant for carrying the electricity to the destination of his own use

25.

Standby charges for drawal of power by open access customer from distribution licensee.

- In cases of outages of generator supplying to open access customer under open access, standby arrangements should be provided by the distribution licensee for a maximum period of 42 days in a year, subject to the load shedding as is applicable to the embedded consumer of the licensee and the licensee shall be entitled to collect tariff under Temporary rate of charge for that category of consumer in the prevailing rate schedule subject to the condition that such tariff shall not exceed the highest consumer retail tariff in the prevailing rate schedule:

Provided that in cases where temporary rate of charge is not available for that consumer category, the standby arrangements shall be provided by the distribution licensee for a maximum of 42 days in a year and on payment of fixed charges of 42 days and energy charges for that category of consumer in the prevailing rate schedule:

Provided further that in case of stand by arrangements sought by continuous process industries, the licensee shall charge on the basis of actual costs involved in arranging power:

Provided also that open access customers would have the option to arrange stand-by power from any other source.

Chapter 6

Scheduling, Metering, Revision and Losses

26.

Scheduling.

(1)

Notwithstanding anything contained in the succeeding clauses of this regulation, scheduling of inter-State open access transactions shall be as specified by the Central Commission.

(2)

Subject to the foregoing clause, intra-State open access transactions in respect of consumers of load 10 MW and above and all generating stations irrespective of the capacity shall be scheduled by SLDC in accordance with the provisions of the State Grid Code.

(3)

There shall be no scheduling required in respect of open access consumer having load of less than 10 MW.

Provided that the generating station from which such consumer has contracted power shall be subjected to scheduling requirements as per the applicable grid code.

27.

Metering.

(1)

In case of open access consumer having load of 10 MW and above and all generating stations irrespective of capacity, Special Energy Meters shall be installed by the State Transmission Utility or the distribution licensee as the case may be, for and at the cost of the customer.

(2)

Special Energy Meters installed shall be capable of time-differentiated measurements for time-block-wise active energy and voltage differentiated measurement of reactive energy in accordance with the State Grid Code.

(3)

Special Energy Meters shall always be maintained in good condition.

(4)

Special Energy Meters shall be open for inspection by any person authorized by the State Transmission Utility or the State Load Despatch Centre.

(5)

As regards open access consumers having load less than 10 MW, the meter shall be installed by the distribution licensee concerned.

(6)

All the open access customers shall abide by the metering standards of CEA.

28.

Revision.

- Revision of scheduled energy shall be permitted in accordance with the provisions of IEGC or the State Grid Code as

the case may be.

29.

Losses.

- (1) Transmission losses:

(a)

Inter-State transmission:

(i)

Long-term access and medium-term open access: The buyers shall bear apportioned energy losses in the transmission system in accordance with the provisions specified by the Central Commission.

(ii)

Short-term Open Access: The buyers and sellers shall absorb apportioned energy losses in the transmission system in accordance with the provisions specified by the Central Commission.

(b)

Intra-State transmission: The transmission losses for the intra- State system shall be determined by the Commission in their tariff orders for the applicable year, shall be apportioned in proportion to the actual energy drawal by the open access customers and shall be payable in kind.

(2)

Distribution loss : The system losses for the distribution system shall be determined by the Commission for various voltage levels in their tariff orders for the applicable year and shall be apportioned in proportion to the actual energy drawal by the open access customers and shall be payable in kind at relevant voltage level.

Chapter 7

Imbalance and Reactive Energy Charges

30.

Imbalance Charge.

(1)

Scheduling of all transactions pursuant to grant of long-term access or medium term open access or short-term open access shall be carried out on day-ahead basis in accordance with the relevant provisions of IEGC for inter-State transactions and in accordance with State Grid Code for intra-State transactions.

(2)

In case of deviation by open access consumers with load of less than 10 MW, the difference between the applicable sanctioned Open Access load and the actual drawal shall be accounted through the Time of Day (ToD) Meters on monthly basis and settled at the rate of the imbalance charge as determined by the Commission (where imbalance charge has not been determined by the Commission, UI charges as specified by the Central Commission shall be applicable). In case of underdrawal as a result of non availability of the distribution system or unscheduled load shedding, the open access consumer shall be compensated by the distribution licensee at the average power purchase cost of the distribution licensee.

[Explanation. - For the purpose of this regulation, unscheduled load shedding means, load shedding during hours other than the hours for which load shedding has been announced by the distribution licensee. SERC may notify the number of days before which a distribution licensee should declare scheduled load shedding]

(3)

Deviations between the schedule and the actual injection/drawal in respect of open access consumers with load of 10 MW and above and the Generating Stations irrespective of the capacity, shall be settled based on the composite accounts for imbalance transactions issued by SLDC on a weekly cycle based on net metering in accordance with the charges specified by the Commission.

[in respect of the States where the imbalance charges are not specified by the Commission, the phrase "in accordance with the charges specified by the Commission" shall be replaced by "in accordance with the UIcharges specified by the Central Commission"]

(4)

Payment of imbalance charges shall have a high priority and the concerned constituents (including the licensees or the open access customers as the case may be) shall pay the indicated amounts within 10 (ten) days of the issue of the statement, into a State imbalance pool account operated by the SLDC. The person who has to receive the money on

account of imbalance charges would then be paid out from the State imbalance pool account, within three (3) working days.

(5)

If payments against the above imbalance charges are delayed by more than two days, i.e., beyond twelve (12) days from the date of issue of statement, the defaulting party shall have to pay simple interest @ 0.04% for each day of delay. The interest so collected shall be paid to the person who had to receive the amount, payment of which got delayed. Persistent payment defaults, if any, shall be reported by the SLDC to the Commission, for initiating remedial action.

31.

Reactive Energy Charge.

(1)

In respect of open access consumer having a load of 10 MW or above, the payment for the reactive energy charges by open access consumers shall be in accordance with provisions stipulated in the State Grid Code.

[in respect of the States where the reactive energy charges are not specified by the Commission, the phrase "in accordance with provisions stipulated in the State Grid Code" shall be replaced by 'in accordance with provisions stipulated in the IEGC"]

(2)

In respect of open access consumers of load less than 10 MW, reactive energy charges shall be calculated on Power Factor basis as specified by the Commission.

Chapter 8

Commercial Matters

32.

Billing, collection and disbursement.

- Billing in respect of the charges payable under these regulations shall be made as per the following procedure:

(1)

Inter-State transactions:

(a)

Short-term Open Access

(i)

Collection and disbursement of transmission charges for use of CTU and STU systems and operating charges payable to RLDCs and SLDCs towards short-term open access shall be made by the nodal RLDC in accordance with the procedure specified by the Central Commission.

(ii)

The short-term open access customer connected to distribution system of a distribution licensee shall pay to such distribution licensee the charges payable to the distribution licensee within 3 days from the grant of the short-term open access by the nodal agency.

(b)

Long-term access and medium- term open access

(i)

Billing, collection and disbursement of charges payable to RLDC including Unified Load Despatch and Communication Scheme shall be in accordance with the procedure specified by the Central Commission.

(ii)

Bills towards the charges payable to SLDC shall be raised by the STU/SLDC directly to the open access customer connected to STU and to the distribution licensee in respect of the customers connected to the distribution system, before the 3rd working day of the succeeding calendar month.

(iii)

Distribution licensee shall raise the bill with the open access customer connected to it within 3 days of receipt of bill from SLDC.

(iv)

Open access customer connected to the distribution licensee shall pay the charges within five days of receipt of bill from distribution licensee. The distribution licensee shall disburse the amount payable to STU/SLDC on a monthly basis.

(v)

Open access customer connected to the STU shall pay the bills within five working days of receipt of the bill.

(2)

Intra-State transactions:

(a)

Short-term Open Access

(i)

The short-term open access customer shall deposit with SLDC the transmission charges and operating charges within 3 working days of grant of the short-term open access by SLDC.

(ii)

In addition to the above, the short-term open access customer connected to distribution system of a distribution licensee shall also pay to SLDC, the charges payable to the distribution licensee within 3 days from the grant of the short-term open access by the nodal agency. Such charges would be disbursed to the distribution licensee on a weekly basis.

(b)

Long-term and Medium-Term open access

SLDC, transmission licensees and distribution licensee, where applicable, shall communicate to STU the details of the bills due to them by the 3rd day of the succeeding calendar month. STU shall separately indicate the above charges and raise the bill with the open access customer, together with the charges receivable by it, if any, before the 5th day of the above month. The open access customer shall pay the charges within 7 days from the date of receipt of the bill. STU shall disburse the charges payable to SLDC, transmission licensee and distribution licensee on a monthly basis.

[Note: SERCs may appoint the agency for billing and collection of charges as per the practice in vogue in the State.]

33.

Late payment surcharge.

- In case the payment of any bill for charges payable under these regulations is delayed by a open access customer beyond the due date, without prejudice to any action under the Act or any other regulation thereunder, a late payment surcharge at the rate of 1.25% per month shall be levied.

34.

Default in payment.

(1)

Non-payment of any charge or sum of money payable by the open access customer under these regulations (including imbalance charges) shall be considered non-compliance of these regulations and shall be liable for action under section 142 of the Act in addition to action under section 56 of the Act. The STU or any other transmission licensee or a distribution licensee may discontinue open access after giving customer an advance notice of fifteen days without prejudice to its right to recover such charges by suit.

(2)

In case of default in payment of charges due to the Load Despatch Centre, the Load Despatch Centre concerned may refuse to schedule power to the defaulting open access customer and direct the licensee concerned to disconnect such customer from the grid.

35.

Payment Security Mechanism.

- In case of long-term access and medium-term open access, the applicant for open access will open an irrevocable Letter of Credit in favour of the agency responsible for collection of various charges for the estimated amount of various charges for a period of two months.

Chapter 9

Special category of short-term open access consumer

Limited Short-Term Open Access

36.

Eligibility for Limited short-term open access consumer and conditions to be satisfied.

(1)

Subject to the provisions of these regulations, any consumer of the distribution licensee having contracted load upto which open access has been allowed by the Commission and connected through an independent feeder emanating from a grid sub-station of licensee or industrial feeder provided that all the consumers on such industrial feeder, may

apply for Limited short-term open access and having simultaneous schedule of drawal under such open access.

(2)

Subject to the provisions of these regulations, in case of any Limited short-term open access consumer, the minimum schedule for drawal of power through open access in each time slot during the day shall not be less than maximum demand recorded during previous month or 80% of its contracted load whichever is higher.

Explanation: For the purpose of this clause, "time slot" means each 30 minutes time block which is the minimum period for which the Time-of-day meter is capable of integrating the maximum demand.

37.

Settlement of Energy at drawal point in respect of Limited short-term open access consumer.

(1)

The monthly energy drawal (in kVAh) during the open access period by such consumer shall be calculated from his scheduled drawal, and by multiplying it with number of hours of open access availed during the month, as provided in the open access schedule of the consumer:

Provided that such energy drawal shall be at unity power factor.

(2)

Such energy drawal through open access shall be deducted from the monthly consumption of energy recorded in his existing meter installed by the distribution licensee for billing purposes.

Example:

(a)

Contracted load of the such consumer = 10,000

kVA

(b)

Scheduled drawal = 8000 kW

(c)

No. of hours during which open access was

availed by the consumer during the month=180 hours

(d)

Assessed consumption for the month during open

access period = $8000 \times 180 = 1440000$ kVAh = 1440000kWh (at unity

pf)

(e)

Consumption recorded in consumer's meter for the month, say 2500000 kVAh

(f)

Net consumption for the month to be accounted by

distribution licensee for billing purpose = $2500000 - 1440000 =$

1060000 kVAh

(3)

Scheduling shall be done in accordance with relevant provisions of IEGC for inter-State transactions and in accordance with relevant provisions of State Grid Code for intra-State transactions.

38.

Overdrawal / Underdrawal at drawal point by respect of Limited short-term open access consumer.

- Unscheduled Interchange (UI) charges as specified by the Central Commission shall not be applicable for Limited short-term open access consumers. However, Limited short-term open access consumers shall be liable to pay penalty for drawing excess demand in the manner provided below:

(1)

Overdrawal In case such open access consumer draws power more than 100% of its contracted load or scheduled power, whichever is more for any time slot during the open access period in a day, it shall be liable for payment of penalty. Rate of penalty for each time slot (Rs./kVA of contracted load) shall proportionate to the percentage of excess drawal as above and shall be equal to Rs. 0.10 for each percent.

Example:

Calculation of penalty for one day

Contracted load (CD in kVA)

Excess drawal (%)

Rate of penalty (Rs./kVA/time slot)

No. of time slot where power drawn is more than 100% of the CD (TS)

Penalty for each time slot (Rs.)

Total Penalty payable by consumer (Rs.)

(0.10 X % excess drawal)

(TS X Rate X CD)

10000

11

1.10

1

11100

15610000

15

1.5

3

45000

20

2.0

5

100000

(2)

Underdrawal

In case where Limited short-term open access consumers underdraws from the grid, he shall be compensated at average rate for power purchase cost by distribution licensee as per applicable tariff order for relevant year and as described below:

Average rate of power purchase cost = [Total power purchase cost / Total units purchased].

39.

Charges applicable to Limited Short-term open access consumers.

(1)

Limited short-term open access consumers shall be exempted from payment of transmission charges, wheeling charges, cross subsidy surcharge and additional surcharge. However, they shall continue to pay other charges namely energy charge, demand/fixed charge, minimum consumption guarantee etc., applicable to them as per the rate schedule in the tariff order:

Provided that energy charges shall be payable at balance energy/consumption calculated as per energy settlement mechanism provided in Regulations 37 and 38 above.

(2)

Limited short-term open access consumers shall also be liable to pay composite operating charges @ Rs.2,000/- per day or part of the day for each transaction to the SLDC or as determined by the Commission from time to time.

(3)

In case inter-State transmission system is used by such consumer in addition intra-State transmission system or distribution system, transmission charges, RLDC charges etc., as fixed and approved by the Central Commission shall be payable for use of inter-State transmission system in addition to payment of charges as per clauses (1) and (2) above.

40.

Drawal of power by Limited short-term access consumer from distribution licensee.

- In cases where supplier fails to supply power, in any time slot, to Limited short-term open access consumer due to any reason, said supplier shall revise his schedule as per provisions of State Grid Code and the same shall be

communicated to SLDC and concerned open access consumer. The SLDC shall revise the schedule which shall become effective from 2nd time slot (counting the time slot in which such eventuality has taken place to be the first one) and the revised schedule shall be provided to distribution licensee. It shall be duty of open access consumer to draw power as per revised schedule. Drawal of power in excess of the revised schedule by part of the day open access consumer shall be treated as overdrawal of power by such consumer and shall be liable to pay penalty as per Regulation 38 of these regulations.

41.

Nodal Agency for Limited short-term open access consumer.

- The Nodal Agency for Limited short-term open access consumer shall be the State Load Despatch Center and in such case, the State Transmission Utility and/or a transmission licensee and/or a distribution licensee concerned, as the case may be, shall be responsible for co-ordination with the State Load Despatch Center and provide all relevant information required to take decision for providing open access.

42.

Procedure for Grant of Limited Short-term open access consumer.

- The procedure for grant of short-term open access specified in Regulation 15 here-in-above shall be applicable for grant of Limited short- term open access also.

43.

Metering for Limited short-term open access consumer.

- In case of Limited short-term open access consumers, the existing ToD meter installed at their premises shall serve the purpose for energy accounting and billing.

44.

Billing and Payment for Limited short-term open access consumer.

(1)

Limited short-term open access consumer, being a consumer of distribution licensee, shall continue to pay electricity charges billed to him on monthly basis by the distribution licensee subject to adjustments of quantum of energy and other charges for drawal of power during the period of open access provided in Regulation 39 above.

(2)

Distribution licensee shall show these adjustments of quantum of energy and other charges, applicable to such consumer, separately in his electricity bill.

Chapter 10

Information System

45.

Information system.

- The State Load Dispatch Centre shall post following information on its website in a separate web page titled "Open access information" and also issue a monthly and annual report containing such information.

(1)

A status report on long-term access or medium-term open access customers indicating:

(a)

Name of customer;

(b)

Period of open access granted (date of commencement and date of termination);

(c)

Point of injection;

(d)

Point of drawal;

(e)

Transmission system / distribution system used, and

(f)

Open access capacity used.

(2)

A status report on the current short-term open access customers indicating:

(a)

Name of customer;

(b)

Period of open access granted (date of commencement and date of termination);

(c)

Point of injection;

(d)

Point of drawal;

(e)

Transmission system / distribution system used, and;

(f)

Open access capacity used.

(3)

A status report on the Limited short-term open access customers indicating:

(a)

Name of customer;

(b)

Period of open access granted (date of commencement and date of termination);

(c)

Schedule of open access period for each day.

(d)

Point of injection;

(e)

Point of drawal;

(f)

Transmission system / distribution system used, and

(g)

Open access capacity used.

(4)

Peak load flows and capacity available including the reserve capacity on all EHV lines and HV lines emanating from EHV substations.

(5)

The information regarding average loss in transmission and distribution system as determined by respective licensees.

Chapter 11

Open Access to Generating Station Connected to Distribution System

46.

A generating station connected to a distribution system seeking open access shall have to follow, except in respect of the case covered under regulation 47, the same procedure as applicable for a consumer seeking open access under different scenarios, namely long-term access, medium-term open access and short-term open access. Such generating station shall also be liable to pay the same application fee, and other open access charges except the cross subsidy surcharge and additional surcharge as are applicable to a consumer seeking open access.

47.

A generating station seeking open access only within the area of the same distribution licensee, shall make an application in the prescribed format to the distribution licensee.

48.

The distribution licensee, while processing the application of such a generating station, shall follow the following procedure.

(1)

While processing the application from a generating station seeking open access, the distribution licensee shall verify the following, namely-

(a)

Existence of infrastructure necessary for time-block-wise energy metering and accounting in accordance with the provisions of the State Grid Code in force, and

(b)

Availability of capacity in the distribution network.

(2)

Where existence of necessary infrastructure and availability of capacity in the distribution network has been established, the distribution licensee shall convey its approval within the timelines indicated in clause (2) of Regulation 12 herein above as applicable to a consumer.

(3)

In case the distribution licensee finds that the application is incomplete or defective in any respect, it shall communicate the deficiency or defect to the applicant by e-mail or fax or by any other usually recognised mode of communication, within two (2) working days of receipt of the application:

(4)

In case the application has been found to be in order but the distribution licensee refuses to give approval for open access on the grounds of nonexistence of necessary infrastructure or unavailability of surplus capacity in the distribution network, such refusal shall be communicated to the applicant by e-mail or fax or by any other usually recognized mode of communication, within the period of three (3) working days from the date of receipt of the application, along with reasons for such refusal

(5)

The Generating station shall pay the wheeling charge to the distribution licensee as determined by the Commission. The treatment of deemed generation in case of non availability of distribution system shall be settled mutually between the generating station and the distribution licensee.

Chapter 12

Miscellaneous

49.

Under -Utilisation or Non-Utilisation of open access capacity in intra-State transmission system.

- (1) Long-term access : A long-term customer may relinquish the long-term access rights fully or partly before the expiry of the full term of long-term access, by making payment of compensation for stranded capacity as follows:-

(a)

Long-term customer who has availed access rights for at least 12 years

(i)

Notice of one (1) year - If such a customer submits an application to the State Transmission Utility at least 1 (one) year prior to the date from which such customer desires to relinquish the access rights, there shall be no charges.

(ii)

Notice of less than one (1) year - If such a customer submits an application to the State Transmission Utility at any time lesser than a period of 1 (one) year prior to the date from which such customer desires to relinquish the access rights, such customer shall pay an amount equal to 66% of the transmission charges for the stranded transmission capacity for the period falling short of a notice period of one (1) year.

(b)

Long-term customer who has not availed access rights for at least 12 (twelve) years - such customer shall pay an amount equal to 66% of the estimated transmission charges (net present value) for the stranded transmission capacity for the period falling short of 12 (twelve) years of access rights:

Provided that such a customer shall submit an application to the State Transmission Utility at least 1 (one) year prior to the date from which such customer desires to relinquish the access rights:

Provided further that in case a customer submits an application for relinquishment of long-term access rights at any time at a notice period of less than one year, then such customer shall pay an amount equal to 66% of the estimated transmission charges (net present value) for the period falling short of a notice period of one (1) year, in addition to 66% of the estimated transmission charges (net present value) for the stranded transmission capacity for the period falling short of 12 (twelve) years of access rights.

(c)

The discount rate that shall be applicable for computing the net present value as referred to in sub-clause (a) and (b) of

clause (1) above shall be the discount rate to be used for bid evaluation in the Central Commission's Notification issued from time to time in accordance with the Guidelines for Determination of Tariff by Bidding Process for Procurement of Power by distribution Licensees issued by the Ministry of Power.

(d)

The compensation paid by the long-term customer for the stranded transmission capacity shall be used for reducing transmission charges payable by other long-term customers and medium-term customers in the year in which such compensation payment is due in the ratio of transmission charges payable for that year by such long-term customers and medium-term customers.

(2)

Medium-term Open Access customers -A medium-term open access customer may relinquish rights, fully or partly, by giving at least 30 days prior notice to the nodal agency:

Provided that the medium-term open access customer relinquishing its rights shall pay applicable transmission charges for the period of relinquishment or 30 days whichever is lesser.

(3)

Short-term open access customer

(a)

The short-term open access schedules accepted by the nodal agency in advance or on first-come-first-served basis may be cancelled or revised downwards on an application to that effect made to the nodal agency by the short-term open access customer:

Provided that such cancellation or downward revision of the short term open access schedules shall not be effective before expiry of a minimum period of two (2) days:

Provided further that the day on which notice for cancellation or downward revision of schedule is served on the nodal agency and the day from which such cancellation or downward revision is to be implemented, shall be excluded for computing the period of two (2) days.

(b)

The person seeking cancellation or downward revision of short term open access schedule shall pay the transmission charges for the first two (2) days of the period for which the cancellation or downward revision of schedule, as the case may be, has been sought, in accordance with the schedule originally approved by the nodal agency, and thereafter in accordance with the revised schedule prepared by the nodal agency during the period of such cancellation or downward revision.

(c)

In case of cancellation, operating charges specified in Regulations 21 of these regulations shall be payable for two (2) days or the period of cancellation in days, whichever is less.

50.

Computation of capacity availability for open access.

(1)

The capacity available for the open access shall be computed for each transmission segment and for every sub-station by the STU following the methodology given below:

(a)

Available open access capacity of a transmission system segment: = $(DC - SD - AC) + NC - ND$ where, DC=Designed capacity of the transmission segment in MW, SD = Sustained demand (peak load experienced) in MW recorded in the segment, AC = Already allotted capacity, but not availed in MW, NC = New capacity in MW expected to be added and ND = New Demand expected to be added.

(b)

Available open access capacity of a sub-station: = $(TC - SP) + NC - ND$ where, TC= Transformer capacity of the substation in MVA, SP= Sub-station peak in MVA, AC= Already allotted capacity but not availed in MVA, New transformer capacity in MVA expected to be added and ND = New Demand expected to be added.

(c)

The STU shall update these values on monthly basis on the first calendar day of the month and publish it in their website.

(2)

The appropriate distribution licensee shall determine the available capacity for allotment for the portion of the distribution system over which open access has been requested for.

51.

Curtailment Priority.

- When, because of constraints or otherwise, it becomes necessary to curtail the open access service of the customers, subject to the requirements of State Grid Code, the open access to a distribution licensee shall be the last to be curtailed. Among others, short-term open access customers shall be curtailed first, followed by the medium-term open access customers followed by long-term open access customers. SLDC shall frame guidelines for curtailment of open access customers.

52.

Powers to Remove Difficulties.

- If any difficulty arises in giving effect to any of the provisions of these regulations, the Commission may by general or special order, direct the State Transmission Utility, State Load Dispatch Centre, intra-State licensees and the open access customer, to take such action, as may appear to the Commission to be necessary or expedient for the purpose of removing difficulties.

53.

Repeal and Savings.

(1)

Save as otherwise provided in these regulations, the State Electricity Regulatory Commission (.....) Regulations, xxxx, shall stand repealed from the date of commencement of these regulations.

(2)

Notwithstanding such repeal, anything done or purported to have been done under the repealed regulations shall be deemed to have been done or purported to have been done under these regulations.

(3)

Open access customers to the intra-State transmission system and the distribution system in the State on the date of coming into force of these regulations under an existing agreement / contract shall be entitled to continue to avail such access to the transmission and distribution system on the same terms and conditions, as stipulated under such existing agreement/contract. Such persons are eligible to avail long-term access or medium-term open access under these regulations on expiry of such existing agreement/contract. Such of those persons, shall have to apply to come under the long-term access or medium-term open access category at least thirty days prior to the expiry of such existing agreement/contract.

Format for short-term

Format-ST1

Application for grant of short-term open Access

(to be submitted by the customer to SLDC)

To: Dy. General Manager (SLDC),

1

Customer Application No

< Self generated by customer >

Date

2

Period of Transaction

< 3 months and more/less than 3 months/day ahead >

3

Nature of Customer

< Seller/buyer/captive user/tradition behalf of seller/buyer/captive user >

< In Term of power transfer >

4

Customer Name

5

Registration Code

Valid up to

< Regulations code shall be an provided by SLDC>

6

Details of Transaction Party's to Grid

Injecting Entry

Drawee Entity

Name of Entry

Status of Entry*

Utility in which is Embedded

<* In terms of ownership state utility/CPP/IPP/ISGS/Discos/Consumer/specify, if any other>

7

Details of injecting/Drawee Connectively with

intra-State System

Injecting Entry

Drawee Entity

Name of Sub-station

Transmission

Distribution

Voltage Level

Transmission

Distribution

Name of Licensee (Owner of S/S)

Intervening intra-State Licensee

Intervening intra-State Licensee

< Distribution license, if required, may treat interface periphery as its connectivity points >

8

Open Access Sought for (Period from date

_____ to date_____)

Date

Hours

Capacity

From

To

From

To

MW*

< MW* at point of injection >

9

Details of PPA/PSA/MOU

Name/& Address of Parties

Date of PPA/PSA/MOU

Validity Period

Capacity

Seller

Buyer

Commencement

Expiry

MW

< MW* at point of injection >

10

Details of Non-Refundable Application Fee Mode

Bank Details

Instrument Details

Type(Draft/Cash)

Instrument No.

Date

Amount (Rs.)

11

I hereby authorize SLDC to process said application in case open access capacity allotted, for day ahead scheduling in accordance with the provisions of intra-State ABT

12

Declaration

All Entries/Utilities to transaction shall said by provisions of the J&K Electricity Act, 2010 (the Act) J&KSERC (Terms and Conditions for Intra-State Open Access) Regulation, 2015 and any other relevant regulation/order/code as amended from time to time

PlaceDate

Signature (with Stamp)Name & Designation

Enclosures

(1)

Non-refundable application fee by Demand draft or cash receipt (if payment by cash).

(2)

Self-certified copy of PPA/PSA/Mou entered between the Parties (buyer and seller) of transaction stating contracted power, period of transaction, drawal pattern, points) of injection and drawal etc.

(3)

Self-certified copies of concurrence of STU and/or transmission licences and/or distribution licensee and /or distribution licensee. (if period of transaction is of three months and more)

(4)

if any other

Copy to along with relevant enclosures (expect (1) & (2) above):

(1)

Managing Director of transmission licensee involved in transaction.

(2)

Managing director of distribution licensee involved in transaction. or as per clause 14.8 of procedure.

(3)

Officer in charge of transmission substation involved in transaction.

(4)

Officer in charge of distribution substation involved in transaction.

(5)

Any other concerned.

For use a SLDC (with Reference to Employment of Application)

SLDC Reference ID No.

Nodel SLDC Approval No.

< if approved)

Or Reasons of Refusal* (if Refused)

*< SLDC may also attached appearing documents for the returns of refusal duty signed on each page>

Format for short-term

Acknowledgement

(for office use only)

Application for Grant of Short-Term Open Access

(A)

< to be filled by the Customer>

1

Customer Application No

< Self generated by customer>

Date

2

Period of Transaction

<3 months and more/less than 3 months/day

ahead>

3

Nature of Customer

< Seller/buyer/captive user/tradition behalf
of seller/buyer/captive user>

< In Term of power transfer>

4

Customer Name

5

Registration Code

Valid up to

< Regulations code shall be an provided by SLDC>

(B)

< to be filled by SLDC>

Details and Time of Receipt of Application

PlaceDate

Signature (With Stamp)Name & Designation

Format-ST Application for Grant of Short-term Open Access (Page 3 of 3)

.....
Acknowledgement

(to be issued by SLDC to the customer immediately on receipt of application duly filled in)

Application for Grant of Short-Term Open Access

(A)

< to be filled by the Customer>

1

Customer Application No

< Self generated by customer>

Date

2

Period of Transaction

<3 months and more/less than 3 months/day

ahead>

3

Nature of Customer

< Seller/buyer/captive user/tradition behalf
of seller/buyer/captive user>

< In Term of power transfer>

4

Customer Name

5

Registration Code

Valid up to

< Regulations code shall be an provided by SLDC>

(B)

< to be filled by SLDC>

Date and Time of Receipt of Application

PlaceDate

Signature (With Stamp)Name & Designation

N.B. - This counterfoil may be scored out and issued to be customer.

Format for short-term

Format-ST2

Approval for short-term open Access

(to be issued by SLDC)

Nodel SLDC Approval No.

/(R-0)

Date

< 'R-O' status original approval with revision no. - zero >

1

Customer Application No

< as provided by customer on Formal-ST1>

Date

2

Period of Transaction

<3 months and more/less than 3 months/day
ahead>

3

Nature of Customer

< Seller/buyer/captive user/tradition behalf
of seller/buyer/captive user>

< In Term of power transfer>

4

Customer Name

5

Registration Code

valid up to

6

Details of Transaction Party's to Grid

Injecting Entry

Decree Entry]

Name of Entry

Status of Entry*

Utility in which is Embedded

<* In terms of ownership state utility/CPP/IPP/ISGS/Discos/Consumer/specify, if any other>

7

Details of injecting/Drawee Connectively with
intra-State System

Injecting Entry

Decree Entry

Name of Sub-station

Transmission

Distribution

Voltage Level

Transmission

Distribution

Name of Licensee (Owner of S/S)

Intervening intra-State Licensee

Intervening intra-State Licensee

8

Open Access Approved for (Period from date

_____ to date_____)

Revision No

0

Month

Date

Hours

Capacity MW

MWH

From

To

From

To

Applied

Allotted

Total MWH

9

Details of Bidding < only in case of Bidding>

Details of Intra-State System

Date

Hours

Applicable Rate (Rs./KWH)

Transmission System

From

To

From

To

Distribution System

10. The approved transaction shall be incorporated in day-ahead scheduling in accordance with the provisions of intra-state ABT. < only in case of approval>

11. Please submit following to SLDC with details on format [Format-ST5] in the manner as specified in procedure: < only in case of approval>

(a) SLDC Fee Amount Rs. _____(b) Security Amount Rs. _____

Due Date: _____Due Date: _____

12. The approval is subject to provisions of SERC (Terms and conditions for Intra State Open Access) Regulations, 2010 and any other relevant regulation/order/code as amended and applicable from time to time. < only in case of rejection >

13. No approval is being granted on account of < only in case of rejection >

PlaceDate

Signature (with stamp)Name & Designation

Enclosure

(1)

Schedule of payments < only in case of approval >

(2)
If any other
Copy to along with enclosures
(1)
Customer
(2)
Managing Director of transmission licensee involved in transaction.
(3)
Managing Director of distribution licensee involved in transaction or as per clause 14.8 of procedure.
(4)
officer in charge of transmission substation involved in transaction.
(5)
Officer in charge of distribution substation involved in transaction.
(6)
Any other concerned.
Format for short-term
Enclosure to Format-ST2
of Payments
(to be enclosed for each month by SLDC along with FOMAT-ST2)
Nodel SLDC Approval No.
/(R-0)
Date
< 'R-O' states original approval with revision no. zero >
1
Customer Application No
< Self generated by customer>
Date
2
Period of Transaction
<3 months and more/less than 3 months/day
ahead>
3
Nature of Customer
< Seller/buyer/captive user/tradition behalf
of seller/buyer/captive user>
< In Term of power transfer>
4
Customer Name
5
Registration Code
valid up to
6
Tentative* Monthly Payment Schedule for
Short-Term Open Access Charges (Period: date ____ to date ____)
Month
Payment Chargeable for
Rate (Rs./kWh)
MWh
Total (Rs.)
(1) Intra-State Network
(a) Transmission Charges

concerned Transmission Licensee

Intervening intra-State Licensee(if any)

(b) Wheeling Charges

concerned Distribution Licensee

Intervening intra-State Licensee(if any)

(c) Surcharge

concerned Distribution Licensee

(d) Additional Surcharge

concerned Distribution Licensee

(e) SLDC Charges

SLDC

(2) Inter-State Network

Transmission Charges

Intervening inter-State Licensee(if any)

Total Monthly Payment Amount (Rs.)

PlaceDate

Signature (With Stamp)Name & Designation

* Tentative on the basis of MWh mentioned in application which may vary on actual operation.

Format for short-term

Format-ST3

Congestion Information and Invitation of Bidding

(to be invited by SLDC)

SLDC Bidding Invitation No. _____

Date _____

1

Customer Application No

< Self generated by customer>

Date

2

Period of Transaction

<3 months and more/less than 3 months/day
ahead>

3

Nature of Customer

< Seller/buyer/captive user/tradition behalf
of seller/buyer/captive user>

< In Term of power transfer>

4

Customer Name

5

Registration Code

valid up to

6.

The anticipated congestion (transformer and
electric line/link) is as follow:

Network Corridor

Congestion Period

Margin/Capacity Available

Total Capacity Applied by all the Customers

Sub-station with Transformation Capacity

Electric Line/Link with Capacity

Date
Hours
From
To
From
To
MW
MW
Intra-State Transmission System
Intra-State Distribution System
Inter-State Transmission System

7.

In view of above please submit bid on format [FORMAT-ST4].

The details for bidding are hereunder:

(a) Bid Invitation Date

Time

(b) Bid Submission Date

Time

(c) Bid Opening Date

Time

(d) Bids Invited for

Intra-State Network Corridor

Congestion Period

Margin/Capacity Available for Bidding

Floor Price

Sub-station

Electric Line/Link

Date

Hours

From

To

From

To

MW

Rs./kWh

Name of Transmission System

Name of Distribution System

8.

In case of non submission of bid, application shall be deemed to have been withdrawn and shall not be processed.

PlaceDate

Signature (With Stamp)Name & Designation

To: Customers with their reference's < as provided by customers at sl.no. 1 on FORMAT-ST1 >

Format for short-term

Format-ST4

BID Proposal

(to be submitted by the customer to SLDC)

Ref: SLDC Bidding Invitation No. _____

Date _____

To: Executive Engineer (SLDC)

1

Customer Application No

< Self generated by customer>

Date

2

Period of Transaction

<3 months and more/less than 3 months/day

ahead>

3

Nature of Customer

< Seller/buyer/captive user/tradition behalf
of seller/buyer/captive user)>

< In Term of power transfer>

4

Customer Name

5

Registration Code

valid up to

6.

In reference to above bidding invitation,

I hereby submit my bid as follows:

Bidding Details as provided by SLDC

Bid Price to be Quoted by Bidder

Intra-State Network Corridor

Congestion Period

Margin/Capacity Available for Bidding

Floor Price

Sub-station

Electric Line/Link

Date

Hours

From

To

From

To

MW

Paise/Kwh

Paise/Kwh*

Name of Transmission System

Name of Distribution System

< * Bidder shall quote price (rounded-off to whole number) in denotation of floor price >

7.

I do hereby agree that determined bid price(s) shall be
transmission and/or wheeling charges.

PlaceDate

Signature (With Stamp)Name & Designation

Related AI tags, queries and research notes

Translation